

SULOCHANA MANAMPERI

Attorney-at-Law and,
Notary Public,

237/107, Mahagedarawatte, Alubomulla
PANADURA.

Tel: 0718005603

Code No.: I/3/09/6233
Judicial Division: Panadura
Duplicates to: Panadura
Local Authority: Colombo Municipal Council
Date: 9th April 2026 .
No of Lands: One.
Consideration: Rs.879,134,400/-

PRIOR REGISTRATION: E 319/117

LEASE

NO:

THIS INDENTURE of Lease made and entered into at Panadura in the Democratic Socialist Republic of Sri Lanka on this Nineth (9th) day of April Two Thousand Twenty Six between **YONMEREENGNA SIMAN HEWAGE SUNIL MALCOM SILVA** alias Yonmerenna Simanhewage Sunil Malcolm Silva (Holder of National Identity Card No.561882584V) of No.83, Main Street, Panadura in the Democratic Socialist Republic of Sri Lanka (hereinafter called and referred to as the Lessor) which term or expression as herein used shall where the context so requires or admits mean and include the said **YONMEREENGNA SIMAN HEWAGE SUNIL MALCOM SILVA** alias Yonmerenna Simanhewage Sunil Malcolm Silva his heirs, executors and administrators of the First part

And

CAPITAL TRUST HOLDINGS LIMITED a company duly incorporated in the said Republic of Sri Lanka and registered under the Companies Act No.7 of 2007 and bearing registration No. PV 75497PB and having its registered office at 42, Sir Mohammed Macan Markar Mawatha, Colombo 03 in the said Republic of Sri Lanka (hereinafter called and referred to as the "Lessee" which term or expression as herein used shall where the context so requires or admits mean and include the said **CAPITAL TRUST HOLDINGS LIMITED** and its successor or successors in business) of the Second part.

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Notwithstanding the above, a person charged with an offence shall not be liable to be held in custody for more than 24 hours after the time of arrest, unless it is necessary to do so for the purpose of obtaining evidence or for the purpose of bringing the person before a court.

5. POWER OF ARREST AND DETENTION OF PERSONS IN CUSTODY

- (1) Subject to the provisions of the Constitution, a person shall not be liable to be held in custody for more than 24 hours after the time of arrest, unless it is necessary to do so for the purpose of obtaining evidence or for the purpose of bringing the person before a court.
- (2) Subject to the provisions of the Constitution, a person shall not be liable to be held in custody for more than 24 hours after the time of arrest, unless it is necessary to do so for the purpose of obtaining evidence or for the purpose of bringing the person before a court.
- (3) Subject to the provisions of the Constitution, a person shall not be liable to be held in custody for more than 24 hours after the time of arrest, unless it is necessary to do so for the purpose of obtaining evidence or for the purpose of bringing the person before a court.
- (4) Subject to the provisions of the Constitution, a person shall not be liable to be held in custody for more than 24 hours after the time of arrest, unless it is necessary to do so for the purpose of obtaining evidence or for the purpose of bringing the person before a court.
- (5) Subject to the provisions of the Constitution, a person shall not be liable to be held in custody for more than 24 hours after the time of arrest, unless it is necessary to do so for the purpose of obtaining evidence or for the purpose of bringing the person before a court.

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- (5) Subject to the provisions of the Constitution, a person shall not be liable to be held in custody for more than 24 hours after the time of arrest, unless it is necessary to do so for the purpose of obtaining evidence or for the purpose of bringing the person before a court.

Notwithstanding the above, a Grace Period of three (3) months shall apply from the 9th of April 2026 to the 8th of July 2026 during which no rent shall be payable.

3. YIELDING AND PAYING therefor unto the Lessor the rental of;

- a) **Rupees Six Million (Rs. 6,000,000/=)** per mensem for the period commencing from the Ninth (9th) day of July Two Thousand and Twenty Six (2026) and ending on the Eighth (8th) day of July Two Thousand and Twenty Eight (2028).
- b) **Rupees Six Million Six Hundred Thousand (Rs.6,600,000/=)** per mensem for the period commencing from the Ninth (9th) day of July Two Thousand and Twenty Eight (2028) and ending on the Eighth (8th) day of July Two Thousand and Thirty (2030).
- c) **Rupees Seven Million Two Hundred and Sixty Thousand (Rs.7,260,000/=)** per mensem for the period commencing from the Ninth (9th) day of July Two Thousand and Thirty (2030) and ending on the Eighth(8th) day of July Two Thousand and Thirty Two (2032).
- d) **Rupees Seven Million Nine Hundred and Eighty Six Thousand (Rs.7,986,000/=)** per mensem for the period commencing from the Ninth (9th) day of July Two Thousand and Thirty Two (2032) and ending on the Eighth (8th) day of July Two Thousand and Thirty Four (2034).
- e) **Rupees Eight Million Seven Hundred and Eighty Four Thousand Six Hundred (Rs.8,784,600/=)** per mensem for the period commencing from the Ninth (9th) day of July Two Thousand and Thirty Four (2034) and ending on Eighth (8th) day of July Two Thousand and Thirty Six (2036).

Aggregating to **Rupees Eight Hundred and Seventy Nine Million One Hundred and Thirty Four Thousand Four Hundred (Rs.879,134,400/=)** for the full period of Ten Years and payable in the manner following;

- a. **Rupees Seventy Two Million (Rs. 72,000,000/=)** as rent in advance at or before the execution of these presents which shall be set off in One hundred and Twenty (120) monthly installments of Rupees Six Hundred Thousand (Rs.600,000/=) each from and against the rent payable for the period commencing from the Ninth (9th) day of July Two Thousand and Twenty Six (2026) and ending on the Eighth (8th) day of July Two Thousand and Thirty Six (2036);
- b. **Rupees One Hundred and Twenty Nine Million Six Hundred Thousand (Rs.129,600,000/=)** payable in Twenty Four monthly installments of **Rupees Five Million Four Hundred Thousand (Rs.5,400,000/=)** per month as the balance rent on or before the Ninth (9th) day of each month against the rent payable for the period commencing from the Ninth (9th) day of July Two Thousand and Twenty Six (2026) and ending on the Eighth (8th) day of July Two Thousand and Twenty Eight (2028).
- c. **Rupees One Hundred and Forty Four Million (Rs.144,000,000/=)** payable in Twenty Four monthly installments of **Rupees Six Million (Rs.6,000,000/=)** per month as the balance rent on or before the Ninth (9th) day of each month against the rent payable for the period commencing from

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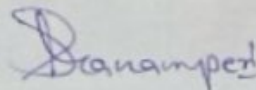
the Ninth (9th) day of July Two Thousand and Twenty Eight (2028) and ending on the Eighth (8th) day of July Two Thousand and Thirty (2030).

- d. **Rupees One Hundred and Fifty Nine Million Eight Hundred and Forty Thousand (Rs.159,840,000/=)** payable in Twenty Four monthly installments of **Rupees Six Million Six Hundred and Sixty Thousand (Rs.6,660,000/=)** per month as the balance rent on or before the Ninth (9th) day of each month against the rent payable for the period commencing from the Ninth (9th) day of July Two Thousand and Thirty (2030) and ending on the Eighth (8th) day of July Two Thousand and Thirty Two (2032).
- e. **Rupees One Hundred and Seventy Seven Million Two Hundred and Sixty Four Thousand (Rs.177,264,000/=)** payable in Twenty Four monthly installments of **Rupees Seven Million Three Hundred and Eighty Six Thousand (Rs.7,386,000/=)** per month as the balance rent on or before the Ninth (9th) day of each month against the rent payable for the period commencing from the Ninth (9th) day of July Two Thousand and Thirty Two (2032) and ending on the Eighth (8th) day of July Two Thousand and Thirty Four (2034).
- f. **Rupees One Hundred and Ninety Six Million Four Hundred and Thirty Thousand Four Hundred (Rs.196,430,400/=)** payable in Twenty Four monthly installments of **Rupees Eight Million One Hundred and Eighty Four Thousand Six Hundred (Rs.8,184,600/=)** per month as the balance rent on or before the Ninth (9th) day of each month against the rent payable for the period commencing from the Ninth (9th) day of July Two Thousand and Thirty Four (2034) and ending on the Eighth (8th) day of July Two Thousand and Thirty Six (2036).

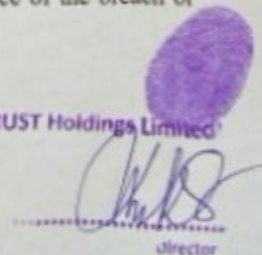
And each such monthly installment of rent stipulated in clause (b) to (f) above being payable on or before the Ninth (9th) day of each and every month.

4. THE LESSEE to the intent that the obligations may continue throughout the term hereby created covenants with the Lessor as follows:-

- (a) To pay the Lessor in Panadura the monthly balance rent without any deductions save as aforesaid on the due dates and in the manner aforesaid.
- (b) To keep the demised premises in a clean and sanitary state in good order and condition and in strict conformity with the laws and by laws of the Authority responsible for the overlooking of properties in the area and having supervisory or other jurisdiction over them and in accordance with directions issued by them and to keep the Lessor freed and indemnified from and against all prosecutions and fines which may be instituted or imposed in consequence of the breach or non-observance by the Lessee of any such laws or by laws.

Capital TRUST Holdings Limited



Director

- (c) To effect at the Lessee's cost and expense the re-decoration, colour-washing to the interior of the demised premises the lighting, flooring, air conditioning, including repairs to and maintenance of the said items of work. It is hereby expressly agreed that all such maintenance work shall be attended to by Capital Trust Facility Management (Pvt) Ltd.
- (d) The Lessee acknowledges that the generator serves the entire Building, including the Ground Floor premises and shall coordinate with the Ground Floor tenants and ensure equitable sharing of the actual fuel costs incurred during generator use.
- (e) To permit the Lessor and his agents engineers workmen and other persons authorized in writing by the Lessor to enter into and upon the demised premises at all reasonable hours in the day time after giving previous notice in writing to the Lessee to view and examine the state of repair and condition of the demised premises or to check upon the Lessor's fixtures and fittings therein and for doing such work including structural repairs to the premises as may be required to the demised premises and which it is the obligation of the Lessor to carry out in accordance with the Lessor's covenants by arrangement with the lessee so as not to cause inconvenience to the Lessee or disrupting its business.
- (f) Not to make any alterations or additions or improvements or reductions to the demised premises other than the items mentioned in paragraph (4) (C) hereof without the prior approval of the Lessor in writing.
- (g) Not to do or permit or suffer to be done upon the demised premises anything which shall constitute a nuisance or annoyance to or in any way interfere with the quiet or comfort of the occupants of the other floors of the demised premises or adjoining premises.
- (h) Not to store or bring to the demised premises any article of a combustible inflammable or dangerous nature and not to do or permit to be done any thing on the demised premises by reason whereof the present or future policy or policies of insurance taken by the Lessor in respect of the demised premises may become void or voidable or whereby the premium thereof may be increased and to repay to the Lessor on demand all such sums paid by way of increased premium and all expenses incurred by the Lessor in or about any renewal of such policy or policies consequent upon a breach or non-observance of this covenant
- (i) Not to sublet the demised premises without the prior written consent of the Lessor. Which consent shall not be unreasonably withheld. Provided however that the Lessee may sublet the demised premises to any of its wholly-owned subsidiary companies and/ or Tech City Lanka (Pvt) Ltd, Capital BPO (Pvt) Ltd, Colombo BPO (Pvt) Ltd, which Mr. Tushan Wickramasinghe & Mrs. Minoli Wickramasinghe are sole shareholder directors.

To use the demised premises only for the purpose of carrying on Business Process Outsourcing (BPO) services to foreign clients such as Customer Support Services, Accounting, IT, HR and Entertainment under Companies mentioned in the above clause and for no other purpose, except the highest floor which has five rooms and could be used as office or residential purpose.

The Lessee shall at its own cost obtain and maintain all necessary licenses, permits, and shall strictly comply with data protection laws, labour laws health

and safety and fire safety regulations. The Lessee shall be liable for any damages or misuse of the premises by its subsidiary companies/ sublet companies and the Lessee shall indemnify the Lessor against any claims, fines, or liabilities arising from any breach of this clause. Any breach shall constitute a material breach entitling the Lessor to terminate this Lease forthwith by seven (7) day's written notice.

- (j) To indemnify the Lessor in respect of any damage or loss that may be caused or occasioned to the Lessor as a result of any accident (including motor accidents) or other act or omission resulting from the negligence of the Lessee taking place in or upon the demised premises.
- (k) To pay and discharge all meter and other charges incidental to the supply of electricity and water to the demised premises to the respective authorities.
- (l) At the expiration or sooner determination of this lease peaceably and quietly to surrender and yield up possession of the demised premises unto the Lessor in accordance with the covenants herein contained in the same good order state of repair and condition as the demised premises were at the commencement of this lease (reasonable wear and tear excepted) with all the Lessor's fixtures and fittings and if any damage shall have been caused to the demised premises by negligence or misuse to make good the same to the Lessor from and out of the deposit held by the Lessor who is hereby authorized to deduct there from the cost of such damage provided that such damage, if any, shall be assessed by a competent person acceptable to the Lessor and Lessee and the cost of making good the same being agreed to by the parties. The refund of security deposit and any balance advance rent shall be made in accordance with the procedure and timelines set out in Clause 6(i) hereof.
- (m) To carry out all running maintenance and minor repairs to the demised premises up to a sum of Rupees Seventy Five Thousand (Rs.75,000/-) per job per floor.
- (n) To forward promptly to the Lessor any Statutory Notice of Assessment or any other notice served on the demised premises by the Municipal Council or by any other Statutory body or Institution.
- (o) To reimburse the lessor the Value Added Tax (VAT) or any other statutory payment in respect of the receipt by the lessor of the rentals paid by the lessee in terms hereof if the same is due and payable by the lessor to any state institution and for which payment the lessor shall produce an invoice to the lessee within 14 days of Lessor producing the VAT invoice.
- (p) To be responsible for any damage caused to any one or more of the Thirteen cement sculptures (statues) which have been imported from Italy by the Lessor and installed on the balcony of the Penthouse and in the event of anyone of them being damaged or destroyed by the lessee or its servants, agents, customers, visitors, contractors, workmen or any other person authorized by the lessee to enter the demised premises, the lessee shall replace any such statue or statues so damaged or destroyed by an identical replica of same which shall be of Italian origin or in the alternative shall pay the lessor the cost of replacement of such statue or statues inclusive of all duties payable, transportation and cost of installations.

5. THE LESSOR to the intent that the Obligations on his part herein contained may continue throughout the term hereby granted covenants with the Lessee as follows.

(a) That the Lessee paying the deposit and the rents hereby reserved and observing and performing the several conditions and agreements herein contained and on its part to be observed and performed shall and may peaceably and quietly occupy and enjoy the demised premises during the said term without any interruption or disturbance from or by the Lessor or any person or persons holding or claiming under or in trust for the Lessor.

To pay and discharge all rates taxes assessments and other charges as fixed and prevailing and levied on the demised premises.

(b) At all times to repair and keep the exterior and interior of the demised premises and the drainage and water service and electrical connections in good order and condition and in a state of repair unless such repairs have either become necessary or been occasioned due to the Lessee's negligent use of the demised premises and in such event the cost and expenses of repairing the interior and exterior of the demised premises shall be borne by the Lessee and if the Lessee shall fail to effect such necessary repairs the Lessor may carry out the same and charge the cost thereof to the account of the Lessee and set off the cost from the deposit held by the Lessor.

(c) To permit the Lessee (after prior arrangements with the Lessor) to affix exhibit or display name boards sign boards advertisement boards and advertisement signs and notices of any nature whatsoever in or outside the demised premises as the Lessee may desire but so that such name boards sign boards advertisement boards and advertisement signs shall not affect destroy or disfigure the aesthetic value of the demised premises or otherwise obstruct the view and these shall at all times remain the property of the Lessee and may be removed therefrom by the Lessee prior to or upon the termination of this lease or any renewal thereof without causing damage to the demised premises and if any damage be caused the same shall be made good by the Lessee.

(d) To insure and keep insured the buildings of the demised premises and the Lessor's fixtures and fittings against damage by fire lightning riots and civil commotion, terrorist activity, storms, floods and tempest or other insurable risks but nothing herein shall relieve the Lessee from keeping insured its own property on the demised premises.

(e) To warrant and defend the title of the demised premises and indemnify and keep the Lessee indemnified bearing all costs and saved harmless reimbursed and compensated at all times against all claims, prosecutions, demands, costs, damages, losses and outgoings which may be incurred or suffered by the Lessee arising out of any defect or dispute as to the title of the demised premises.

(f) To continue to provide 100 amp. 3 phase electricity connection with a separate meter and also a ¾ inch water connection with a separate meter.

(g) Not to do or suffer or permit or cause to be done suffered or permitted any act deed matter or thing whatsoever whereby or by reason whereof any mortgage whether created before or after the coming into operation of this lease by any bond may be foreclosed or the moneys thereunder may be or become immediately payable or any other act whatsoever whereby the Lessee shall be disturbed in its possession and enjoyment of the demised premises in terms of these presents and indemnify and keep indemnified the Lessee against all loss and damages that may be sustained by the Lessee as a result of a breach of this clause.

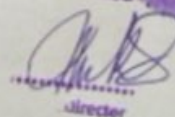
(h) Keep the demised premises free and freed of any seizure sequestration sale or charge or order for non payment of interest or claim due on any mortgage bond affecting the

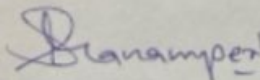
demised premises and indemnify the Lessee against loss or damage if any caused to the Lessee by the default or failure on the part of the Lessor to fulfill any obligation on his part as provided in any such Mortgage.

- (i) Well and faithfully observe and perform all the covenants on its part undertaken under any mortgage bond and to pay all interest thereon and installments of repayments of principal if any under the said Bonds on the due dates and in the event of any failure on the Lessor's part to pay the said interest and installments of principal if any on the due dates the Lessee shall be entitled to (without any obligation to do so) and the Lessor doth hereby expressly direct and authorize the Lessee to pay any such interest and installments of principal out of any lease rents which may become due and payable by the Lessee hereunder direct to the Mortgagees and its assigns and the receipts of the said Mortgagees or its assigns shall be a Pro Tanto discharge of the Lessee in respect of the payments so made.
- (j) The lessor agree and undertake to refund to the lessee the refundable deposit paid by the lessee at the termination or sooner determination of this lease subject to the right of the lessor to set off the costs of any damage caused to the said demised premises, the cost of any unpaid rentals, unpaid electricity, water or telephone bills. The refund of security deposit and any advance rent shall be made strictly in accordance with the procedure and timelines set out in Clause 6(i) hereof.
- (k) To ensure that the passenger lift is made available at all times. The lessor shall appoint his agents for once a month maintenance and repair and servicing repairs of the lift.
It is also agreed that the lessor will attend to all repairs which are not covered in the Lift Service Agreement and the lessee will attend to the damages caused by the misuse of the lift.
- (l) The lessor shall continue to provide the Generator adequate for the business of the lessee to ensure the continuous and an uninterrupted supply of power during the lease period. The lessor shall appoint an agent for regular servicing and maintenance of the generator. The lessor agrees to bear the cost of the maintenance of the Generator. In the event of a continuous power interruption in the supply of electricity by the Ceylon Electricity Board the lessor shall provide electrical power utilizing the generator for such the lessee shall be liable to pay the cost of fuel consumed proportionately with the other users. In the event of the Generator becoming beyond repair the lessor undertakes to replace a new generator within a reasonable time.
- (m) The lessor shall continue to provide the parking lots already allocated to the lessee.
- (n) The lessor undertakes to install a fire detection system for each floor in accordance with Colombo Municipal Council Fire Department requirements. He shall also provide the required portable fire extinguishers. It is the responsibility of the lessor to maintain the fire detection system and the fire extinguishers.



Capital TRUST Holdings Limited


Director



6. PROVIDED ALWAYS and it is hereby mutually agreed and declared as follows:-

- (a) If any of the covenants and conditions on the part of the Lessee herein contained shall not be observed or performed, the Lessor shall give to the Lessee Three Months notice in writing to observe or perform such covenant or condition as the case may be and if at the expiration of the said notice of Three Months such covenant or condition shall not have been observed or performed then and in such event the Lessor shall be entitled to reenter into or upon the demised premises or any part thereof in the name of the whole and there upon this demise shall absolutely cease and determine but without prejudice to any right of action or remedy of either party against the other in respect of any antecedent breach of any covenant or condition herein contained.
- (b) The Lessee shall construct temporary partitioning, internal electrical distribution boards, wiring, data caballing, lighting and air conditioning at its own cost without having to request permission from the Lessor, provided that all such works shall be carried out in a proper and workmanlike manner, without causing any damage to the structural integrity of the building or affecting the Lessor's insurance cover. The Lessee shall its own cost and expense to install telephone wires, antenna dishes and aerials, pipes and conduits, telex and intercommunication systems computers and other electronic equipment, generators fans, air-conditioning or cooling apparatus, water heaters, gas or electric heaters or cooling apparatus, refrigerators, cold rooms in the demised premises and to erect semi-permanent internal partitions or erections as the Lessee may deem expedient and make internal alterations and modifications as necessary to make the demised premises suitable for the Lessee's business and to meet the needs or requirements of the Lessee provided however that in effecting the aforesaid installations and erections the Lessee shall ensure that as little damage as possible is caused to the demised premises which damage the Lessee shall make good and that such installations shall not affect the rights and amenities of the Lessor or others in occupation of the building standing on the demised premises.
- (c) The Lessee shall at the end of the term of this Lease or of any renewal thereof remove all telephone, telex and inter-communication systems and all semi-permanent internal partitions or erections and other removable equipment installation or fixtures installed by the Lessee in or upon the demised premises in terms of clause (6) (b) hereof causing as little damage as possible to the demised premises and it shall be the responsibility of the Lessee to restore the demised premises to its original condition fair wear and tear excepted making good such damage. For the avoidance of doubt, the Lessee shall not be required to remove the air-conditioning systems installed at the Premises up to a total value of Rupees Three Million (Rs.3,000,000/=), calculated based on the cost of installation at the time of installation. Any air-conditioning systems installed by the Lessee in excess of the aforesaid amount shall be removed by the Lessee at its own cost upon termination of the Lease. NOTHING herein shall however preclude the Lessee from offering to the Lessor any or all of the said additional installations at a price to be agreed upon by both parties.
- (d) If the demised premises or any part or parts thereof shall at any time during the said term be destroyed or damaged and rendered uninhabitable or unfit for use by fire, explosion, malicious damage, riot, terrorist activity or civil commotion, flooding, storms or tempest or inevitable accident or other irresistible force this Lease shall in the case of total destruction of the demised premises or on their being rendered unfit for further occupation by the Lessee be immediately determined subject to clause (6) (C) hereof without however any obligation on the part of the Lessee to restore the

premises or repair or re build same and the Lessor shall refund to the Lessee the rental paid in advance for the period subsequent to such termination and in the case of partial destruction or damage shall be determined at the option of the Lessee upon giving notice in writing to the Lessor within Ten (10) days of the happening of such event and no rent shall accrue to the Lessor after such determination and any rent paid in advance for any period after such determination shall be refunded by the Lessor to the Lessee. If the Lessee shall however elect to remain in occupation of the demised premises after the same shall have been rendered partially damaged the Lessor may allow a revision in the rent at its sole and absolute discretion and refund any excess over and above such reduced rent paid in advance subject however to any claim by either party against the other in respect of any antecedent breach of any covenant or condition herein contained.

- (c) That in case the Lessor wishes at any time to execute a mortgage in respect of the demised premises for the purpose of obtaining an advance on the security of the property hereby demised the Lessee shall at the cost and expense of the Lessor execute a Deed of Postponement of these presents within seven (7) working days so as to give priority on the registers at the Land Registry to the said Mortgage Bond over these presents providing for such safeguards as may be required by the Lessee.
- (f) The Lessor shall at the expiration of the term hereby created or any renewal thereof or on the termination of this Lease by the Lessor as herein provided and if there shall be no subsisting breach by the Lessee of the covenants herein before contained and on its part to be observed and performed refund to the Lessee the said security deposit paid by the Lessee as aforesaid at the execution hereof. PROVIDED HOWEVER that the Lessor shall be entitled to deduct therefrom any rent due hereunder from the Lessee or any other sums necessary for restoring the demised premises to their original state and condition (fair wear and tear only excepted) or making good any damage caused by reason of the negligence or careless misuse of the demised premises by the Lessee without prejudice to any other rights or remedies the Lessor may have in law against the Lessee. The refund of security deposit and any balance advance rent shall be made in accordance with the procedure and timelines set out in Clause 6(i) hereof.
- (g) That the Lessee duly observing and performing all the several conditions covenants and agreements herein contained and giving the Lessor notice in writing not later than Twelve (12) months before the expiration of the term of this demise that a renewal of the lease is required to be granted to the Lessee, the Lessor may grant a renewal of this Lease to the Lessee for a further term upon the rent, terms, and conditions as may be mutually agreed upon at that time by the parties.
- (h) It is hereby agreed that the lessee will colour wash the interior walls and all common areas exclusively used by the lessee within the demised premises and the lessor shall colour wash the exterior walls of the demised premises. Every time the Lessor paints the exterior walls, the Lessee will paint interior walls within two months.
- (i)
 - a. The Parties hereby agree that the first Five (5) years of the Lease Term shall constitute the Lock-in Period, during which neither the Lessor nor the Lessee shall terminate this Lease Agreement, except in the event of a material breach of the terms of this Agreement by the other party.
 - b. In the event the Lessee terminates the Lease during the Lock-in Period, The Lessee shall pay six (6) months' rent as liquidated damages, which the parties agree represent a genuine pre-estimate of the loss that would be suffered by the Lessor. Likewise in the event the Lessor terminates the Lease during the Lock-in Period, the Lessor shall pay six (6) months' rent as liquidated

damages, which the parties agree represent a genuine pre-estimate of the loss that would be suffered by the Lessee.

The Lessee shall also be liable to pay rent and all other charges until vacant possession of the premises together with the keys are handed over to the Lessor.

The Lessor may deduct any outstanding rent, damages, utility charges or other dues from the Security Deposit and advance rent.

The balance of the Security Deposit and advance rent, if any, shall be refunded within three (3) months from the date the Lessee hands over vacant possession of the premises together with the keys.

- c. Upon the expiry of the Lock-in Period, either party may terminate this Lease Agreement by giving the other party Twelve (12) months prior written notice.

If the Lessee terminates after Lock-in period Lessee shall pay Three (3) months' rent as liquidated damages to the Lessor. Likewise if the Lessor terminates after Lock-in period Lessor shall pay Three (3) months' rent as liquidated damages to the Lessee.

The Lessee shall also pay rent and all other charges until vacant possession of the premises together with all keys are handed over to the Lessor.

The Lessor may deduct any outstanding rent, damages, utility charges or other dues from the Security Deposit and advance rent.

The balance of the Security Deposit and advance rent, if any, shall be refunded within one (1) month from the date the Lessee hands over vacant possession of the premises together with the keys.

- d. If The Lessor terminates this Lease without any default on the part of the Lessee, the lessor shall refund the Security Deposit and any advance rent paid by the Lessee on the day handing over keys to the Lessor by the Lessee.
- (j) Upon termination of this Lease, the Lessee shall quit and deliver vacant and peaceful possession of the demised premises in the same good order state of repair and condition as the demised premises were at the commencement of this lease (reasonable wear and tear excepted.) with all the Lessors fixtures and fittings and if any damage shall have been caused to the demised premises by negligence or misuse to make good the same to the Lessor from and out of the deposit held by the Lessor who is hereby authorized to deduct therefrom the cost of such damage provided that such damage, if any shall be assessed by a competent person acceptable to the Lessor and Lessee and the cost of making good the same being agreed by the parties. The refund of security deposit and any advance rent shall be made in accordance with the procedure and timelines set out in Clause 6(i) hereof.
- (k) In case of delays in payment of the monthly rent, for more than seven (7) days, the lessee shall be liable for Rupees Twenty Five Thousand (Rs.25,000/=) per delayed day as penalty.
- (l) If the monthly rent payment is delayed or not paid for a consecutive period of three months, it shall constitute a material breach entitling the Lessor to

terminate this Lease with no liability to the lessor and re-enter the premises without prejudice to the lessor's right to recover any outstanding rent or damages.

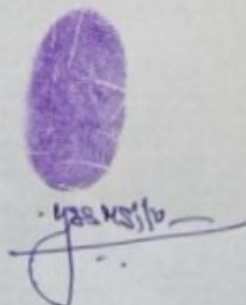
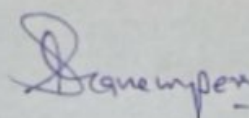
- (m) Notwithstanding that no rent is payable during the Grace Period referred to in Clause 2, the Lessee shall during such period, be bound by and comply with all the terms and conditions of this Lease.

The Lessee shall be responsible for the payment of all electricity charges, water charges and any other outgoings or expenses incurred in respect of the Premises during the Grace Period.

The provisions relating to rent and any delay in payment including clauses 6(k) and 6(l) shall apply upon expiry of the Grace Period.

- (n) It is hereby agreed that the lessee has no objection to the transferring of the demised premises by the lessor to his immediate family members and if so the Lessor should inform the Lessee such intention and should make arrangements to execute a new Lease Agreement with same or similar conditions or clauses mentioned hereof at the same rent and terms prevailing at the time of transfer, with the new land owner or owners as Lessor, if the new Lessor creates a identical lease and bears all costs including stamp duty and other taxes and legal fees.
- (o) In the event of the tenant of the ground and Mezzanine floors vacating the same the lessor shall grant the lessee the first option to lease the same to the lessee on terms, conditions and rental to be mutually agreed upon between the parties hereto
- (p) Any notice required to be given hereunder shall be deemed to be sufficiently given if sent by registered post in the case of the Lessor to the address mentioned hereof and in the case of the Lessee to the demised premises and a notice so sent shall be deemed to have been received on the next working day following the date of the posting of such notice.
- (q) The lessee shall bear and pay the Stamp duty payable on this Lease and the Lessor shall bear and pay all legal fees in connection with the preparation and execution of this Lease.
- (r) In the unlikely event of a sale of the premises described in the schedule during the period of the lease the Lessor hereby agrees and undertakes to give the first option for purchase to the Lessee on terms to be mutually agreed within 30 days, failing which the Lessor may sell to third party.

IN WITNESS WHEREOF the Lessor set his hand and the Lessee hath caused the Common Seal to be affixed hereunto and to three others of the same tenor and date as these presents on the day month and year first above written.

IST Holdings Limited



Director

THE FIRST SCHEDULE ABOVE REFERRED TO:

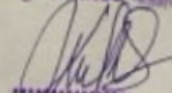
All that divided and defined allotment of land marked Lot R depicted in Survey Plan No. 6434 dated 18th March 1994 and 15th April 1998 made by P. Sinnathamby Licensed Surveyor together with the building and everything standing thereon bearing Assessment No.314 Duplication Road (Presently R.A. De Mel Mawatha) situated at Kollupitiya in the Grama Niladari Division of Thimbirigasyaya in the Thimbirigasyaya Divisional Secretaries Division within the Gravets in Bambalapitiya Ward No.38 of Colombo Municipal Council in the District of Colombo Western Province and which said Lot R is bounded on the **North** by Abdul Gaffoor Mawatha on the **East** by R.A.De Mel Mawatha on the **South** by Lot Y1 of the same land and on the **West** by premises bearing Assessment No.24, Abdul Gaffoor Mawatha and containing in extent Twenty decimal Seven Five Perches (A0 R0 P20.75) as per the said Plan No.6434 and registered in Volume E 319 folio 117 at the Colombo Land Registry.



Left Thumb Impression and the
signature of the Lessor Yonmeregngna
Siman Hewage Sunil Malcom Silva

The Common seal of the within named
Capital Trust Holdings Limited
is affixed hereto in the presence of

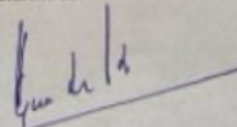
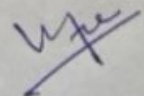
Capital TRUST Holdings Limited

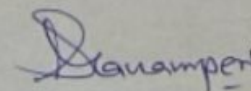

Director

who do hereby attest the sealing thereof.



Witnesses:

1. 
2. 



NOTARY PUBLIC